

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUBC038090: MFIB CA, LLC DBA ICON NATIONAL, A CALIFORNIA LIMITED
LIABILITY COMPANY vs BRIGHTSTAR MANAGEMENT GROUP, LLC, A
CALIFORNIA LIMITED LIABILITY COMPANY**

08/19/2026 in Department 21

**Plaintiff's Motions to Compel Responses to Plaintiff's Special Interrogatories (Set One),
Form Interrogatories (Set One), Demand for Production of Documents (Set One), and
Motion to Deem Matters Specified in Requests for Admissions Admitted, and Requests for
Sanctions against Brightstar Management Group, LLC and for Sanctions**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) Plaintiff MFIB CA, LLC dba ICON National's ("ICON") motion to compel responses to special interrogatories (Set One) to Defendant Brightstar Management Group, LLC ("Brightstar"), and sanctions of \$1,105 against Brightstar.**
- (2) Plaintiff ICON's motion to compel responses to special interrogatories (Set One) to Defendant Brightstar, and sanctions of \$1,105 against Brightstar.**
- (3) Plaintiff ICON's motion to compel responses to requests for production of documents (Set One) to Defendant Brightstar, and sanctions of \$1,105.**
- (4) Plaintiff ICON's motion to deem matters specified in ICON's requests for admissions (Set One) admitted, and for sanctions of \$1,105 against Brightstar.**

Tentative Ruling: The discovery motions set for hearing this day must be continued for a reasonable period of time to permit defendant to secure counsel and either file opposition or provide the overdue discovery responses. The hearings shall be continued to September 21, 2026, at 8:30 a.m. in this department.

If the Order granting defense counsel's motion to be relieved as counsel has been served on the Defendant, counsel for Defendant shall file the proof of service of the Order with the Court within 12 days of the date of this order.

2025CUBC038090: MFIB CA, LLC DBA ICON NATIONAL, A CALIFORNIA LIMITED LIABILITY COMPANY vs BRIGHTSTAR MANAGEMENT GROUP, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

Plaintiff's request brought up in the reply motion for the Court to strike Defendant Brightstar's Answer is denied.

Counsel for Plaintiff to give notice within two (2) court days.

Discussion:

This case involves a commercial contract dispute. Before the Court this day are four (4) discovery motions filed by the plaintiff on June 4, 2026. Those motions include motions to compel responses to form interrogatories, special interrogatories, request for documents, and request to deem matters admitted. No opposition to any of the motions have been filed.

Each of the four discovery motions were served on defense counsel after he already had on file a motion to be relieved, but before the order granting that motion became effective. Even though counsel took appropriate steps under CRPC Rule 1.16(d) to avoid prejudice to defendant, and the motions were properly served throughout (see CRC 1.21(a), defendant is presently without standing to (1) oppose the motions or (2) provide proper discovery responses. The motion to be relieved as counsel became effective upon the filing of the proof of service of the signed order upon counsel's client pursuant to CRC, rule 3.1362(e). The order granting counsel's motion to be relieved as counsel was filed on 7/20/26. However, counsel has yet to file the proof of service of this signed order on the Defendant. It is unknown to this Court as to whether the order has been served by defense counsel on Defendant. As such, counsel for Defendant remains counsel of record in the court docket.

Assuming arguendo the Order has been served on the Defendant, it is well-established in California that a business entity – such as defendant here – cannot represent itself in litigation in a court of general jurisdiction either *in propria persona* or through an officer or agent who is not an attorney. *Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 730; *Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.* (2002) 99 Cal.App.4th 1094, 1101. Although a corporate party unwilling to retain counsel “risks forfeiture of its rights” (*Thomas G. Ferruzzo, Inc. v. Superior Court* (1980) 104 Cal.App.3d 501, 504), a court is not free to impose sanctions upon an entity which finds itself suddenly lawyer-less without first allowing sufficient time to cure that defect. See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1149. Trial courts are to first advise the unrepresented entity that it needs to retain counsel (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284 n.5) and then give the entity time to do so (*Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 547). Costs, if any, associated with any delay may be imposed as sanctions against the entity (see *CLD Construction, supra*, at 1151).

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